

TENTATIVE RULINGS
Judge Lindsey E. Martínez, Dept. C24

“Civility is not about etiquette. This is not a matter of bad manners. Incivility slows things down, it costs people money – money they were counting on their lawyers to help them save. And it contravenes the Legislature’s directive that ‘all parties shall cooperate in bringing the action to trial[.]’ (Code Civ. Proc., § 583.130.)” (*Masimo Corp. v. The Vanderpool Law Firm, Inc.* (2024) 101 Cal. App. 5th 902, 911; *see generally* OCBA Civility Guidelines.)

- The court encourages remote appearances to save time and reduce costs.
- All hearings are open to the public.
- You must provide your own court reporter and interpreter, if required.
- Call the other side and ask if they will submit to the tentative ruling. If everyone submits, call the clerk. The tentative ruling will become the order. If anyone does not submit, there is no need to call the clerk.
- The court will hold a hearing. The court may rule differently at the hearing. (*See Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

Hearing Date: August 31, 2026 at 1:30 pm

Rulings Posted: 8/28/26 at 5:00 pm

#	Case Name	Tentative
201	<i>Cambridge Healthcare Management Services, LLC vs. Lake Hughes Recovery Estates, Inc.</i>	Before the court three motions filed by attorneys at Clark Hill, LLP (“Attorneys”), requesting respectively to be relieved as counsel of record for defendants/cross-complainants Lake Hughes Recovery, Lake Hughes Recovery Estates, Inc. dba First Responders, and Alexander Frankian (“Clients”). All three motions are GRANTED. Attorneys have complied with the requirements of California Rule of Court 3.1362, and filed and served forms MC-051, MC-052, and MC-053 on Clients and on the other parties in this action. The court finds Attorneys have provided valid and

		sufficient reasons for requesting to be relieved as counsel for Clients. The motions are granted. The court will continue trial in this matter to November 30, 2026, in order to permit Clients, which include two corporate entities, time to find new counsel. The court orders Attorneys to turn over the complete case file to Clients no later than September 14, 2026, and to provide a list of pending deadlines as requested by Clients in their opposition. The court notes the order relieving counsel shall not be effective until Attorneys file proof of service of the ruling on Clients. Until such time, Attorneys shall remain counsel of record. Attorneys are ordered to give notice of this ruling.
202	<i>L. vs. DOE 1</i>	The motion for judgment on the pleadings filed by Saddleback Valley Unified School District (District) as to the cause of action for negligence in the First Amended Complaint (FAC) filed by plaintiff A.L. is DENIED, as set forth herein. A motion for judgment on the pleadings may be made, and granted, on the same grounds as a general demurrer. (<i>Stoops v. Abbassi</i> (2002) 100 Cal.App.4th 644, 650) As with a demurrer, the grounds for judgment on the pleadings must appear on the face of the complaint or be based on facts that the court may judicially notice. (<i>Burnett v. Chimney Sweep</i> (2004) 123 Cal.App.4th 1057, 1063) In the third cause of action, plaintiff alleges District employees had actual notice the plaintiff was being sexually abused by her teacher and did nothing to protect her. (FAC ¶67) Plaintiff further alleges examples of grooming and other interactions of